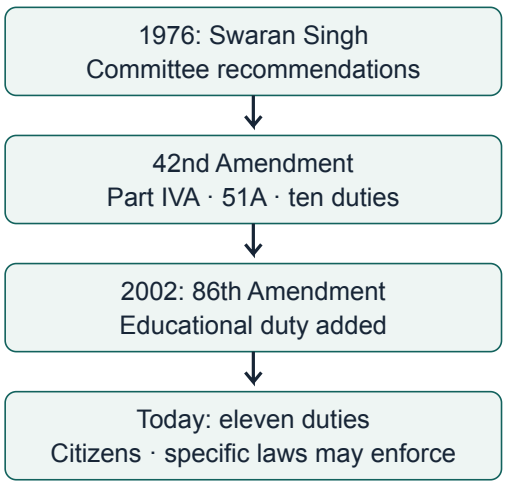
Fundamental Duties

1. Origin and constitutional location

- Original Constitution had **Fundamental Rights and State-directed DPSPs**, but no separate Fundamental Duties list.
- **USSR influence; Swaran Singh Committee 1976; 42nd Amendment 1976 → Part IVA, Article 51A, ten duties**. **86th Amendment 2002 → eleventh educational duty, 51A(k)**.
- Committee appointed by **Congress during 1975–77 Emergency**; recommended a separate chapter and **eight duties**, while final amendment included ten.
- Unaccepted recommendations: **tax-payment duty; general penalties for non-compliance; immunity of penalty laws from constitutional challenge**. Tax duties exist under ordinary law, but paying tax is not an express 51A duty.
- Comparative caution: Japan has constitutional duties, but the chapter's claim that it is the only democracy with duties is too absolute; distinguish a named consolidated list from duties elsewhere in constitutions.

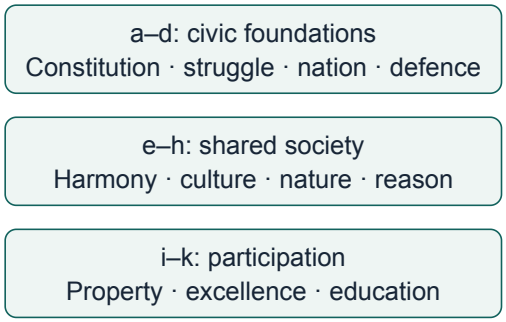


Distinguish introduction from the later educational addition.

2. All eleven duties: clause-wise recall

- **(a) Constitution and symbols:** abide by Constitution, respect ideals/institutions, National Flag and Anthem.
- **(b) Freedom struggle:** cherish/follow the noble ideals inspiring national struggle.
- **(c) Nation:** uphold/protect **sovereignty, unity, integrity**.
- **(d) Defence:** defend country and render national service **when called upon**.
- **(e) Harmony and women:** common brotherhood across religious, linguistic, regional/sectional diversity; renounce practices derogatory to women's dignity.
- **(f) Culture:** value/preserve rich heritage of **composite culture**.
- **(g) Environment:** protect/improve forests, lakes, rivers, wildlife; **compassion for living creatures**.
- **(h) Reason and reform:** scientific temper, **humanism**, inquiry and reform.

- **(i) Public property:** safeguard it and **abjure violence**.
- **(j) Excellence:** strive in individual/collective activities so nation rises in endeavour/achievement.
- **(k) Education:** citizen **parent/guardian** provides educational opportunities to child/ward **6–14**. Added **86th**, alongside **21A** and revised **45**.
- Recall groups: **Constitution–struggle–nation–defence; harmony–culture; environment–reason; property–excellence–education**.



Recall all eleven clauses in three groups.

3. Nature and legal effect

- Applies to **citizens**, unlike some Rights that extend to persons/foreigners. Ordinary laws can still impose obligations on non-citizens.
- **Moral and civic:** freedom-struggle ideals are a moral example; constitutional/symbol respect a civic one; categories overlap.
- Reflect civic values, constitutional unity, dignity and inherited cultural/environmental responsibilities; not a licence to impose one religious interpretation on everyone.
- **Not independently justiciable:** no automatic constitutional punishment for every breach. Existing or valid new legislation may enforce particular obligations with penalties.
- Duties can guide interpretation/reasonableness; they do **not automatically override Rights** or exempt laws from judicial review. Legislative competence and constitutional limits still apply.
- **21A:** State's educational right obligation; **45:** State's early-childhood policy goal; **51A(k):** parent's/guardian's duty—different duty-bearers and age bands.



Constitutional interpretation connects rights, goals and responsibilities.

4. Criticisms and balanced assessment

- **Incomplete:** voting, tax payment, family planning absent from express list. Their absence does not nullify separately enacted legal obligations.
- **Vague:** noble ideals/composite culture/scientific temper can invite differing interpretations; **D.D. Chawla** called for clearer, accessible wording.
- **Non-justiciable:** criticised as moral precepts without direct sanctions. Response: educational/interpretive value and specific implementing laws.
- **Superfluous/paternalistic: C.K. Daphtary/A.K. Sen** questioned formal instruction to citizens and State distrust; these were political opinions, not constitutional rulings.
- **Placement:** critics preferred adjacency to Part III, rather than after Part IV. Their actual location is a separate **Part IVA**, not merely provisions within Part IV.
- Emergency-era inclusion should be assessed alongside later retention and broad civic purposes.

5. Significance and judicial use

- Remind citizens that public life involves responsibility alongside rights; encourage active participation, discipline, solidarity, environmental care and excellence.
- Oppose destruction of public property, violence and insults covered by lawful legislation; avoid treating every dissenting act as anti-national.
- **Mohan Kumar Singhania 1991:** duties assist interpretation of ambiguous law. **Ramlila Maidan 2012:** read **III, IV, IVA** together when assessing rights, governance and duties.
- **H.R. Gokhale/Indira Gandhi:** defended duties as promoting legal-order respect and democratic balance; retain these as historical justifications, not a rule subordinating liberty.
- **Janata Government retained duties** while undoing several Emergency amendments through **43rd 1977/44th 1978**. Addition in **2002** reinforces their continuing constitutional role.

6. Verma Committee 1999: existing legal support

- **Prevention of Insults to National Honour Act 1971:** Constitution, Flag, Anthem protections.
- Enmity/national-integration offences: historical **IPC**, now relevant **BNS** provisions since **July 2024**, subject to savings and offence-specific elements.
- **Protection of Civil Rights Act 1955:** untouchability-related disabilities; renamed from Untouchability (Offences) Act in **1976**. It is not a general punishment for every religious disagreement.
- **UAPA 1967:** prescribed unlawful-association framework; **Representation of the People Act 1951:** prohibited electoral appeals/corrupt practices and disqualification machinery under law.
- **Wildlife Protection Act 1972:** regulated/prohibited wildlife trade; **Forest Conservation Act 1980**, later renamed **Van (Sanrakshan Evam Samvardhan) Adhiniyam**: conservation/diversion control.
- Committee identified legal support already available; **1999 did not insert the duties**, and no single Act automatically criminalises all eleven.

7. One-minute recall and mains structure

- **42nd → ten; 86th → eleven; Part IVA → 51A; Swaran Singh → introduction; Verma → legal support.**
- **(e) women/harmony; (g) environment/compassion; (h) science/humanism; (k) education 6–14.**
- **Mains:** origin → citizenship responsibilities → examples/laws → non-justiciability and rights safeguards → education/public participation rather than indiscriminate penalties.

Official Constitution, Article 51A